

**BEFORE THE
FEDERAL MARITIME COMMISSION**

20230930-DK-BUTTERFLY-1, INC. f/k/a BED BATH & BEYOND INC., *Complainant*,

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC#011982) consisting of EVERGREEN MARINE CORP. (TAIWAN) LTD., EVERGREEN MARINE (UK) LIMITED, ITALIA MARITTIMA SpA, EVERGREEN MARINE (HONG KONG) LTD., AND EVERGREEN MARINE (SINGAPORE) PTE. LTD., *Respondents*.

DOCKET NO. 24-12

MOTION TO PERMIT SUPPLEMENTATION

Pursuant to 46 C.F.R. § 502.210(c), Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Ltd., Italia Marittima S.p.A., Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd. (collectively, “Evergreen” or “Respondents”), by their undersigned counsel hereby submit this motion to permit supplementation, and in support thereof state that good cause for the requested supplementation exists, as follows:

1. Complainant 20230930-DK-BUTTERFLY-1, INC. f/k/a BED BATH & BEYOND INC. (“BBBY” or “Complainant”) has filed at least six separate FMC matters against ocean carriers alleging similar Shipping Act violations. Those matters are: (1) 20230930-DK-Butterfly-1, Inc. v. MSC Mediterranean Shipping Company SA, Docket No. 23-12; (2) Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited, Docket No. 23-02; (3) 20230930-DK-BUTTERFLY-1, Inc. v. Evergreen Marine Corp. (Taiwan) Ltd., et al, Docket No. 24-12; (4) Bed Bath & Beyond Inc. v. Yang Ming Marine Transport Corp., Docket No. 23-10; (5) 20230930-DK-Butterfly-1, Inc. v. BAL Container Line Co., Limited, Docket No. 25-01; and (6) 20230930-DK-BUTTERFLY-1, Inc. v. HMM Company Limited, Docket No. 26-01.

2. According to its recent bankruptcy filings, BBY also settled at least three other claims against ocean carriers before commencing litigation, including Ocean Network Express (ONE), Hapag Lloyd, and COSCO Shipping Lines. See Plan Administrator’s Third Post Confirmation Status Report (9/29/2023 – 6/30/2026), filed August 21, 2026, at fn 14 (D.N.J. Bankr. 23-13359-VFP), a copy of which is attached hereto as **Exhibit A**.

3. In the MSC, OOCL, Yang Ming, Evergreen, and HMM matters identified in paragraph 1 above, BBY alleged, *inter alia*, that the respondent carrier failed to honor its service commitments to BBY in violation of 46 U.S.C. § 41102(c), requiring BBY to obtain replacement or alternative carriage on the spot or open market at higher rates during the relevant shipping year(s), and sought reparations based on the additional costs allegedly incurred in replacing the carrier’s service-commitment shortfalls (the “Excess Freight Claims”). See 20230930-DK-Butterfly-1, Inc. v. MSC Mediterranean Shipping Company SA, Docket No. 23-12, Verified Compl. ¶¶ 4, 96, 102, 110, 115–16 and Prayer for Relief ¶ 4; Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited, Docket No. 23-02, Verified Compl. ¶¶ 5, 20, 118, 123, 135, 137, 141 and Prayer for Relief ¶ 4; Bed Bath & Beyond Inc. v. Yang Ming Marine Transport Corp., Docket No. 23-10, Verified Compl. ¶¶ 4, 18, 74, 80, 89, 93, 96 and Prayer for Relief ¶ 4; 20230930-DK-Butterfly-1, Inc. f/k/a Bed Bath & Beyond Inc. v. Evergreen Line Joint Service Agreement (FMC#011982), et al., Docket No. 24-12, Verified Compl. ¶¶ 5, 24, 73–74, 79, 91–94, 99 and Prayer for Relief ¶ 4; 20230930-DK-Butterfly-1, Inc. v. HMM Company Limited, Docket No. 26-01, Verified Compl. ¶¶ 5, 21, 98, 104, 114, 119–21 and Prayer for Relief ¶ 4.

4. In this matter, Claimant has at times sought upwards of \$86,000,000 in reparations. Of that, BBY alleges it is owed \$7,464,001.10 in reparations for damages under its Excess Freight Claim against Evergreen. See Complainant’s Section of the Joint Prehearing Statement, filed May 18, 2026, at C-75.

5. In support of BBY's Excess Freight Claim against Evergreen, BBY listed, by bill of lading number, container level data purporting to "reflect additional incremental costs incurred by BBY for cargo that BBY did ship—on the same port pairs and during the term of [BBY's service contracts with Evergreen]—with NVOCCs at higher prices than had Evergreen satisfied its service commitments and carried the agreed-to quantity of cargo at lower contracted-for rates" in Appendix A-1 through A-8 to Complainant's Objections and Responses to Respondent's First Supplemental Set of Interrogatories, dated August 5, 2025 ("BBY's Appendices"). BBY and its experts have relied on and referred to BBY's Appendices throughout this litigation, including in its expert report and Prehearing Statement.

6. Based on the information set forth in BBY's Appendices in this and other cases, Evergreen's counsel discovered that BBY is claiming reparations for excess freight costs under many of the same bills of lading and for the same containers as alleged in at least two other matters before the FMC, not including matters settled confidentially. In other words, BBY is seeking a windfall in reparations by "double dipping" under claims disproven by their own multiplicity.

7. Accordingly, for each bill of lading listed in BBY Appendix A-1 and A-5, Evergreen sought BBY's admission, by way of approximately 380 separate paragraphs in Respondents' Request for Admissions, served September 30, 2025, that "[BBY] is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. [insert each bill of lading appearing in Appendices A-1 and A-5] against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission." See Complainant's Objections and Responses to Respondent's Request for Admissions, dated October 30, 2025, ¶¶ 830–1214, at 309-565, a copy of the relevant portions of which is attached hereto as **Exhibit B**.

8. BBY responded to each of Evergreen's foregoing requests in identical fashion:

Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container**, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

See **Exhibit B** at ¶¶ 830–1214, at 309-565 (grammatical corrections inserted for readability).

9. Significantly, BBY **DENIED** it was seeking reparations for these containers in other cases. BBY's disingenuous response was misleading at best. BBY attempted to justify its denial by stating that it would not seek reparations from Evergreen for a specific NVOCC bill of lading if there was a judgment against another ocean carrier for that bill of lading.

10. Following the "double dipping" discovery in this case, on November 13, 2025, Yang Ming Marine Transport Corp. filed a motion to reopen the record and supplement briefing in the matter of Bed Bath & Beyond Inc. v. Yang Ming Marine Transport Corp., Docket No. 23-10. Likewise, on December 9, 2025, OOCL moved to Reopen Discovery in Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited, Docket No. 23-02, to vet BBY's claimed reparations to recover freight payments for the same shipments from multiple parties.

11. On December 12, 2025, ALJ Crovella issued an order holding Yang Ming's motion to reopen the record and supplement briefing in abeyance pending a determination of liability in that case.

12. On April 24, 2026, Chief ALJ Erin M. Wirth issued an Initial Decision in Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited, Docket No. 23-02, awarding BBY reparations against OOCL for, *inter alia*, increased freight costs

associated with BBY's shipment of cargo under bills of lading for which BBY is also seeking reparations from Evergreen and Yang Ming. ALJ Wirth denied OOCL's motion to reopen discovery.

13. In this case, Evergreen completed fact and expert discovery and ultimately filed its portion of the Joint Prehearing Statement on May 18, 2026, based on the evidence available at the time and on BBY's denial (repeated nearly 400 times) that it was not seeking recovery from other carriers for the Bills of Lading identified in Appendices A-1 and A-5 in this case.

14. Approximately two months after the Joint Prehearing Statement was filed, on July 16, 2026, ALJ Crovella issued an order in the BBY v. Yang Ming matter, Docket No. 23-10. A copy of that order is attached hereto as **Exhibit C**. ALJ Crovella's July 16, 2026 Order granted in part and denied in part Yang Ming's motion to reopen the record and supplement briefing based on the revelation that Complainant herein is seeking duplicative reparations for excess freight costs associated with the same bills of lading alleged in at least two other matters.

15. ALJ Crovella's order directed BBY to respond to the following:

Requests for Information Directed to Complainant:

1. How many distinct shipment entries (i.e. rows of data) were included in this proceeding's McCown Appendix A-1? Also confirm that the shipments in this proceeding's Appendix A-1 sum to 851.75 FEUs.
2. Out of the total distinct shipment entries (i.e. rows of data) included in this proceeding's McCown Appendix A-1, how many shipments had also been included in the 23-02 McCown Appendix B-1? Please specify both in terms of the number of distinct shipment entries (i.e. rows of data), and also specify the FEU sum, with respect to shipments that had been cross-listed in 23-02's McCown Appendix B-1.
3. Create a chart, labeled as Appendix A-1(a), which lists all of the rows and columns of data contained in this proceeding's McCown Appendix A-1, and with one additional column added that will indicate 'Included in 23-02 App. B-1, Yes or No' and filling in 'Yes' or 'No' for each row of data.
4. Create and provide a supplemental chart, labeled as Appendix A-1(b), replicating this proceeding's Appendix A-1, but with all of the entries that had been cross-listed in 23-02's McCown App. B-1 omitted. For example, if

there had been 475 rows of shipment data, summing to 851.75 FEUs in this proceeding's original McCown Appendix A-1, and if 300 of those rows of shipment data had also been included in 23-02's McCown Appendix B-1, then there should only be 175 rows of data in the end Appendix A-1(b). Also include a sentence on the top of the supplemental chart, Appendix A-1(b), stating "The shipments in this chart sum to xxx FEUs," filling in the accurate FEU number where xxx's are indicated.

5. Create and provide a supplemental chart, labeled as Appendix A-2(b), replicating this proceeding's Appendix A-2, but summarizing only the shipment data contained in the new Appendix A-1(b).
6. Create and provide a supplemental chart, labeled as Appendix A-3(b), replicating this proceeding's Appendix A-3, but based only on the shipment data contained in the new Appendix A-1(b) and Appendix A-2(b).
7. Create and provide a supplemental chart, labeled as Appendix A-4(b), replicating this proceeding's Appendix A-4, but summarizing only the data set forth in supplemental charts Appendix A-1(b) through A-3(b).
8. Complainant should include unique APP bates numbers, which have not previously been used, on each page of the supplemental charts requested above, so that these pages may be clearly referenced.
9. If desired, discuss why shipments being included in the 23-02 McCown Appendices, for which reparations have already been granted, should or should not preclude these shipments being utilized in support of reparations for 23-10 shortfall damages. Such discussion (and any response thereto by Yang Ming) shall be limited to ten (10) pages.

16. On August 14, 2026, BBY filed and served its response, a copy of which is attached hereto as **Exhibit D**. In its response, BBY admits that 100% of the bills of lading alleged against Yang Ming in Docket No. 23-10 were also alleged against OOCL in Docket No. 23-02 ("BBY's Admission"). BBY's Admission did not exist when Evergreen completed fact and expert discovery and filed its portions of the Joint Prehearing Statement. BBY's Admission in August also directly contradicts BBY's denial of Evergreen's requests that BBY admit it was seeking reparations in other cases for the bills of lading identified in Appendices A-1 and A-5 in Evergreen's case.

17. BBY also revealed new evidence in its August 14, 2026 response:

Even if the Presiding Officer were to conclude that shipments included in the 23-02 [OOCL]

McCown Appendices should not be utilized in support of reparations here, the result would not change, because the record of this proceeding already contains ample additional NVO/FF shipments, on lanes covered by the 2021 Service Contract, during the 2021 Service Contract year, that were never included in the 23-02 McCown Appendix B-1. To demonstrate this concretely, and in the format the Order prescribes for the (b)-series charts, Complainant attaches supplemental Appendices A-1(c) through A-4(c). APP-2026 – APP-2066.

See **Exhibit D** at 8.

18. The container level data now presented as alternative evidence of damages caused by Yang Ming in Docket No. 23-10 did not exist in its present form when Evergreen completed fact and expert discovery and prepared its portions of the Joint Prehearing Statement. Evergreen's experts must be given an opportunity to review the data and supplement their reports accordingly.

19. BBY's Admission and new evidence has also made BBY's settlement with other ocean carriers, including Ocean Network Express (ONE), Hapag Lloyd, and COSCO Shipping Lines, relevant.

20. Based upon BBY's Admission and new evidence, as well as the FMC dockets and documents produced by BBY in this case, ***the combined total FEU of BBY's shortfall claims exceeds the total FEU BBY shipped with NVOCCs on the spot market!***

21. BBY's own plan administrator, Michael Goldberg, admitted at his deposition in this case that no cargo was left behind or unshipped at the origin port. In other words, BBY had insufficient cargo to meet its minimum quantity commitments under its service contracts with the various carriers in the first place. These are issues of fault, causation and liability, not just damages, which must now be addressed by Evergreen's experts in supplemental reports and by Evergreen in its portion of the Joint Prehearing Statement.

22. Under the circumstances, Evergreen respectfully requests that it be permitted an opportunity to supplement its expert reports and portions of the Prehearing Statement.

23. In view of BBY's August 14, 2026 admission and new evidence, Evergreen also

requests that, rather than reopen discovery, BBY be ordered to answer the following:

- a. For each settlement reached with an ocean carrier against whom BBY alleged a service contract shortfall during the 2021 and/or 2022 service contract year, state:
 - i. The name of the VOCC;
 - ii. The total FEU shortfall claimed/alleged; and
 - iii. The relevant service contract year/period.

24. The requested information is relevant to the total FEU shortfall claimed by BBY in all cases, including those that resulted in settlements that are otherwise confidential and not presently available in admissible form. Evergreen needs this information to determine the full extent of BBY's shortfall claims for each service contract year and to develop its defenses.

25. Rule 102(a) of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause."

26. Under Rule 210(c), the Presiding Officer may, "for good cause shown," permit a party to introduce facts outside the scope of its prehearing statement. 46 C.F.R. § 502.210(c). The Commission's rules likewise require a party timely to supplement disclosures and discovery responses when later-acquired information demonstrates that an earlier disclosure or response is materially incomplete or incorrect. *Id.* § 502.141(k). The Presiding Officer possesses broad authority to regulate the presentation of evidence and resolve procedural matters, *id.* § 502.25(b)(3)-(4), and Part 502 permits waiver of procedural requirements where necessary to prevent manifest injustice, *id.* § 502.10. These provisions favor supplementation where, as here, the evidence was unavailable when the Joint Prehearing Statement was filed, Respondent acted promptly after

discovering it, the evidence bears directly on a material issue already in dispute, and there is no prejudice given it is Complainant's own data and Complainant will have an opportunity to address it in briefing or hearing.

27. Given the scope and complexity of the claims and defenses across multiple dockets, the Respondents believe it would be most effective, efficient and preserve the Parties' due process rights by allowing the Parties to move forward with this case on the following proposed revised schedule:

October 15, 2026	Disclosure by BBY of information relating to the settled claims
November 30, 2026	Disclosure of Respondents' Supplemental Expert Reports
December 31, 2026	Deadline to complete depositions of Respondents' Experts concerning their supplemental reports, if any
January 31, 2027	Respondents' Supplemental Prehearing Statement

28. Respondents will be severely prejudiced without the requested supplementation.

29. In making this Motion, Respondents have limited their request to the smallest amount of time in which they presently believe they can feasibly conduct supplementation in this large, complex litigation, with the understanding that they will also continue to work with Complainant to stipulate to facts and expeditiously resolve discovery disputes to the extent possible.

30. Pursuant to 46 CFR § 502.71(a), counsel for Complainant and counsel for Respondent met and conferred on September 25, 2026. Counsel discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. While Complainant views the supplementation as an issue of damages that can be held in abeyance pending a determination of liability, if the Presiding Officer decides that supplementation should be permitted now, Complainant agrees to the schedule for supplementation of Respondent's Experts' Reports,

supplementation of the Joint Pre-Hearing Statement and the taking of depositions of Respondent's experts relating to any supplemental reports proposed by Respondent herein.

WHEREFORE, Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Limited, Italia Marittima S.p.A., Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd., pray that their Motion to Permit Supplementation be granted.

Dated: September 25, 2026

Respectfully submitted,

BETANCOURT GRECO,
EVANS & VIGNOCCHI LLC

s/ Alton J. Evans, Jr.

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EXHIBIT A

EXHIBIT A

UNITED STATES BANKRUPTCY COURT DISTRICT OF NEW JERSEY	
Caption in Compliance with D.N.J. LBR 9004-1(b)	
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<i>Counsel to the Plan Administrator</i>	
In re:	Chapter 11
BED BATH & BEYOND INC., <i>et al.</i> , ¹	Case No. 23-13359 (VFP)
Debtors.	(Jointly Administered)

PLAN ADMINISTRATOR'S THIRD POST CONFIRMATION STATUS REPORT
(9/29/2023 – 6/30/2026)

Michael Goldberg, in his capacity as the Plan Administrator (the “Plan Administrator”) to 20230930-DK-Butterfly-1, Inc. (f/k/a/ Bed Bath & Beyond Inc.)² and affiliated debtors (the “Debtors” or the “Wind-Down Debtors”) files this *Post-Confirmation Status Report* for the period

¹ The last four digits of Debtor Bed Bath & Beyond Inc.’s tax identification number are 0488. A complete list of the Debtors in these chapter 11 cases and each such Debtor’s tax identification number may be obtained at <https://restructuring.ra.kroll.com/bbby>.

² Pursuant to the *Certificate of Amendment of the Certificate of Incorporation of Bed Bath & Beyond Inc.*, which was filed with the State of New York Department of State on September 21, 2023, the name of the entity formerly known as “Bed Bath & Beyond Inc.” was changed to *20230930-DK-Butterfly, Inc.* [Filing ID No. 230921001833 DOS ID 315602].

September 29, 2023 through June 30, 2026 (the “Reporting Period”).³

1. On April 23, 2023 (the “Petition Date”), each of the Debtors commenced with this Court voluntary cases under chapter 11 of the Bankruptcy Code.

2. On September 14, 2023 (the “Confirmation Date”), the Court entered the *Findings of Fact, Conclusions of Law, and Order (I) Approving the Disclosure Statement on a Final Basis and (II) Confirming the Second Amended Joint Chapter 11 Plan of Bed Bath & Beyond Inc. and its Debtor Affiliates* [Docket No. 2172] (the “Confirmation Order”), confirming the *Second Amended Joint Chapter 11 Plan of Bed Bath & Beyond Inc. and Its Debtor Affiliates* [Docket No. 2160] (the “Plan”).

3. During the chapter 11 cases and pursuant to the Plan, all of the Wind-Down Debtors’ Assets are being liquidated (or have been liquidated). Before the Effective Date, the Debtors sold the Bed Bath & Beyond, buybuy Baby and Harmon brands and related intellectual property (including the right to use those names in connection with the buyers’ businesses). Any post-confirmation operations associated with the above names are unrelated to the Wind-Down Debtors and will not affect recoveries to creditors under the Plan.

4. Pursuant to the Plan, all securities were cancelled (e.g., common stock, warrants, etc.). Plan, Arts. III.B.9, IV.D, and VII.B; Confirmation Order, ¶ 98. Holders of Interests (e.g., any form of equity, including, without limitation, common stock) are not entitled to any recovery. Plan, Article III.B.9(b) (“Each Allowed Interest in BBB shall be canceled, released and extinguished, and will be of no further force and effect, and no Holder of Interests in BBB shall be entitled to any recovery or distribution under the Plan on account of such Interests.”).

³ Capitalized terms that are not defined herein have the definitions given to them in the Plan.

5. On September 29, 2023, the effective date of the Plan occurred (the “Effective Date”) [Docket No. 2311].

6. On the Effective Date, the Plan Administrator became the sole representative of the Wind-Down Debtors and assumed responsibility for, *inter alia*, liquidating the Assets of the estates, prosecuting Causes of Action, resolving Claims, performing claims reconciliation, and objecting to Claims. (Plan, Article VII).

7. Since his appointment, the Plan Administrator (with the assistance of his staff and Professionals) has, among other things: (i) reconciled, settled and/or objected to thousands of Administrative Claims (unclassified), Priority Tax Claims (unclassified), Other Priority Claims (Class 1) and Other Secured Claims (Class 2) (collectively, the “Administrative and Priority Class Claims”); (ii) recovered and collected significant value related to the Debtors’ remaining Assets, such as reserves held by credit card companies, excess collateral held by insurance companies, prepayments held by vendors and refunds owed by various federal, state and local taxing authorities; (iii) concluded Asset sales; (iv) investigated, filed, prosecuted and/or settled over 250 Causes of Action; (v) negotiated extensively with taxing authorities over the amounts and priority of alleged tax claims, resolving many of those claims; (vi) responded to a plethora of motions filed by parties in interest in the bankruptcy court seeking, *inter alia*, Allowance of Claims and relief from the automatic stay; (vii) prepared and filed Post Confirmation Operating Reports; (viii) prepared and filed all required federal, state and local tax returns; and (ix) made distributions on account of Allowed DIP Claims (Class 3) and Allowed FILO Claims (Class 4), and certain Allowed Secured Claims (Class 2) (the Allowed Texas Tax Claims). The Plan Administrator continues to investigate, liquidate and collect Assets, pursue additional recovery via Causes of Action and reconcile Claims.

8. For informational purposes, a brief summary of the Wind-Down Debtors' estates is set forth below.

A. Collections

9. Starting on the Effective Date with unrestricted cash of approximately \$11 million, the Plan Administrator has collected an additional \$220 million through the end of the Reporting Period. Attached as **Exhibit A** is a table summarizing collections (a) for the current quarters (1/1/2026-6/30/2026) (the "Current Quarters") and (b) from the Effective Date through the end of the Reporting Period.

B. Payments from Unrestricted Cash and Collections

10. From the unrestricted cash and collections, the Plan Administrator has made distributions on account of Allowed Claims and Plan Administrator Expenses totaling \$228 million through the Reporting Period. Attached as **Exhibit B** is a table summarizing payments (a) for the Current Quarters and (b) from the Effective Date through the end of the Reporting Period.

C. Claims Against the Estates

11. As of August 1, 2026, creditors have filed 21,041 proofs of claim against the Debtors ("Total Claims"). To date, the Plan Administrator has filed 34 rounds of omnibus objections to Administrative Claims (unclassified), Priority Tax Claims (unclassified), Other Priority Claims (Class 1) and Other Secured Claims (Class 2) (collectively, the "Administrative and Priority Class Claims"). Through his efforts (including negotiated resolutions), 1981 Administrative and Priority Class Claims have been disallowed, expunged or reclassified as Class

6 General Unsecured Claims. There are approximately 832 additional Administrative and Priority Class Claims pending review, resolution and/or objection.

12. While the Plan Administrator and his Professionals have concluded that the majority of the Asserted Administrative and Priority Class Claims are overstated and will be disallowed, significantly reduced, withdrawn and/or reclassified as Class 6 General Unsecured Claims, below is a summary of the outstanding Claims asserted against the Debtors as of the Effective Date and as of August 1, 2026 (excluding the Allowed Claims of the Debtors' pre-petition secured lenders (i.e., the Class 3 (Allowed DIP Claims) and Allowed Class 4 Claims (Allowed FILO Claims)):⁴

Claim Type	Asserted Amounts as of 09/29/2023	Current Asserted Amounts as of 08/01/26 ⁵
Administrative Claims (11 U.S.C. § 503)	\$60.6 million	\$21.6 million
Priority Claims (11 U.S.C. § 507) (Including Priority Tax Claims and Other Priority Claims)	\$348.5 million	\$115.0 million
Other Secured Claims (11 U.S.C. § 506)	\$57.5 million	\$26.3 million
General Unsecured Claims	\$4.2 billion	\$2.7 billion

D. Payments from the Combined Reserve

13. The Plan provides for a Combined Reserve, which is the only guaranteed source of funding for Allowed Administrative Claims (unclassified), Allowed Priority Tax Claims (unclassified), Allowed Other Priority Claims (Class 1) and Allowed Other Secured Claims (Class

⁴ All Claims figures were provided by the Debtors' Claims and Noticing Agent, Kroll.

⁵ The "Current Asserted Amount" is the total amount claimed in that category as is asserted on the filed Proofs of Claim except: (a) the Current Asserted Amount of any Disallowed Claim is \$0.00; (b) the Current Asserted Amount of any claim that has been Allowed is the Allowed Amount per order or stipulation, and (c) the Current Asserted Amount of any satisfied claim is \$0.00. This figure does not include an additional \$3.2 million in requests for payments of administrative claims that are on the docket (as opposed to being filed as proofs of claim).

2). The Combined Reserve totaled \$10 million when it was turned over to the Plan Administrator on the Effective Date. Pursuant to the Confirmation Order, \$2.8 million of the Combined Reserve was subject to a set aside for the Texas Taxing Authorities. During the Reporting Period, the Plan Administrator paid \$1.6 million to the Texas Taxing Authorities from the Combined Reserve on account of their Allowed Class 2 Claims. Currently, there is \$8.7 million in the Combined Reserve.

14. As set forth above, the amount of alleged Administrative and Priority Class Claims greatly exceeds the amount of the Combined Reserve. Accordingly, in the Plan Administrator's business judgment, until he knows the universe of Allowed Administrative and Priority Class Claims, he is not paying any of them to ensure that each Holder of an Allowed Administrative and Priority Class Claim eventually receives its appropriate pro rata share of the Combined Reserve.

15. Numerous provisions of the Plan and Plan Documents state that the Plan Administrator's expenses will be paid from the Combined Reserve.⁶ Others state that the Plan Administrator's compensation and/or expenses will be paid from the "Wind Down Debtors'

⁶ See Plan, Article VII.B. ("The Combined Reserve shall also be used by the Plan Administrator to satisfy the expenses of Wind-Down Debtors, and the Plan Administrator as set forth in the Plan and Wind-Down Budget; provided that all costs and expenses associated with the winding up of the Wind-Down Debtors and the storage of records and documents shall constitute expenses of the Wind-Down Debtors and shall be paid from the Combined Reserve to the extent set forth in the Wind-Down Budget. In no event shall the Plan Administrator be required or permitted to use its personal funds or assets for such purposes."). See also Plan, Article VII.A.4 ("Plan Administrator Expenses. All costs, expenses and obligations incurred by the Plan Administrator in administering this Plan, the Wind-Down Debtors, or in any manner connected, incidental or related thereto, in effecting distributions from the Wind-Down Debtors thereunder (including the reimbursement of reasonable expenses) shall be incurred and paid from the Combined Reserve as set forth in the Plan Supplement."); Plan, Article VII.A.3 ("Compensation of the Plan Administrator. The Plan Administrator's compensation, on a post-Effective Date basis, shall be as described in the Plan Supplement and paid out of the Combined Reserve. Except as otherwise ordered by the Bankruptcy Court, the fees and expenses incurred by the Plan Administrator on or after the Effective Date (including taxes) and any reasonable compensation and expense reimbursement Claims (including attorney fees and expenses) made by the Plan Administrator in connection with such Plan Administrator's duties shall be paid without any further notice to, or action, order, or approval of, the Bankruptcy Court in Cash from the Combined Reserve if such amounts relate to any actions taken hereunder."); Plan, Article VII.A.2 ("Retention of Professionals. The Plan Administrator shall have the right to retain the services of attorneys, accountants, and other professionals that, in the discretion of the Plan Administrator, are necessary to assist the Plan Administrator in the performance of his or her duties. The reasonable fees and expenses of such professionals shall be paid by the Wind-Down Debtors from the Combined Reserve upon the monthly submission of statements to the Plan Administrator to the extent set forth in the Combined Reserve.").

assets”.⁷ To date, the DIP Lenders and the FILO Lenders have permitted the Plan Administrator’s expenses and compensation to be paid from the disposition of the Wind Down Debtors’ Assets that are subject to their liens.

E. Future Distributions on Account of Allowed Claims

16. It is important to note how the Plan works with respect to payments on account of Allowed Claims. First, pursuant to the Plan, unless a Court order has been entered allowing it, no Claim is deemed to be Allowed until the Claims Objection Bar Date (as may be extended from time to time by the Bankruptcy Court) has passed. Plan, Article I.A, at § 14. Pursuant to the Plan and subsequent orders of this Court, the Plan Administrator currently has until September 30, 2026 to object to Claims (the “Claim Objection Bar Date”). Plan, Article I.A, at § 28. The Plan Administrator intends to move the Court for an additional extension(s) of the Claims Objection Bar Date.

17. The Plan contemplates payment of Allowed Administrative Claims on the Effective Date (if Allowed at that time) or as they become Allowed. Plan, Article II.A. Allowed Priority Tax Claims may be paid in regular monthly installments over 5 years in accordance with 11 U.S.C. § 1129(a)(9)(c).⁸ Plan, Article II.A. However, payment on account of Allowed Administrative

⁷ The Plan Administrator Agreement [Plan Supplement [Docket 2161]] provides that the “The Plan Administrator shall be compensated from the Wind-Down Debtors' assets. . .” Docket 2161-1 at § 2.13. *See also* Plan, Article I.A.109 (“*Plan Administrator*” means the person, selected by the DIP Agent, the FILO Agent, and the Creditors’ Committee, and reasonably acceptable to the Debtors, to administer the Wind-Down Debtors. For the avoidance of doubt, all costs, liabilities, and expenses reasonably incurred by the Plan Administrator, and any personnel employed by the Plan Administrator in the performance of the Plan Administrator’s duties, shall be paid from the Wind Down Debtors’ assets. The identity of the Plan Administrator shall be disclosed in the Plan Supplement.”)

⁸ Section 1129(a)(9) requires a plan to provide, “(C) with respect to a claim of a kind specified in section 507(a)(8) of this title, the holder of such claim will receive on account of such claim regular installment payments in cash— (i) of a total value, as of the effective date of the plan, equal to the allowed amount of such claim; (ii) over a period ending not later than 5 years after the date of the order for relief under section 301, 302, or 303; and (iii) in a manner not less favorable than the most favored nonpriority unsecured claim provided for by the plan (other than cash payments made to a class of creditors under section 1122(b)).” 11 U.S.C. § 1129(a)(9)(c).

Claims and Allowed Priority Tax Claims (as well as Allowed Other Priority Claims (Class 1), and Allowed Other Secured Claims (Class 2)) is limited to (a) first, the funds in the Combined Reserve;⁹ and (b) second, the availability of funds under the Plan's Sharing Mechanism in the Waterfall Recovery.

18. There is a mechanism (the "Sharing Mechanism") under the Plan that has the potential to increase the amount of funds available for distribution to Holders of Allowed Administrative Claims, Allowed Priority Tax Claims, Other Allowed Priority Claims (Class 1) and Other Secured Claims (Class 2) as well as Allowed Class 6 General Unsecured Claims by allowing the Wind Down Debtors' estates to participate in certain percentage recoveries from Causes of Action which are deposited into a Shared Proceeds Pool.¹⁰ The Sharing Mechanism, however, does not begin until the "Initial Sharing Threshold" is met. The Initial Sharing Threshold is "the point in time at which the combined aggregate recoveries to Holders of Allowed Claims in Classes 3 and 4 exceeds \$515,000,000.00 *plus* interest and fees on account of such Claims." Plan, Articles I.A(81) & IV.B.

19. Prior to the Effective Date, the Plan Administrator understands that the Debtors paid \$227 million to the Holders of the Allowed DIP Claims (Class 3) and the Allowed FILO Claims (Class 4) including interest and fees of \$18 million. From the Effective Date through the

⁹ The Plan provides, "The Combined Reserve shall be used to pay Holders of all Allowed Other Priority Claims, Allowed Priority Tax Claims, Allowed Administrative Claims (other than Professional Fee Claims or Allowed DIP Claims), and Allowed Other Secured Claims their respective Pro Rata share of the Combined Reserve, to the extent that such Other Priority Claims, Priority Tax Claims, Administrative Claims (other than Professional Fee Claims or Allowed DIP Claims), and Allowed Other Secured Claims have not been paid in full on or before the Effective Date." Plan, Article VIII.B. The Plan further provides, "Any contrary provision hereof notwithstanding, Allowed Other Priority Claims, Allowed Priority Tax Claims, Allowed Administrative Claims (other than Professional Fee Claims or Allowed DIP Claims), and Allowed Other Secured Claims shall, unless otherwise provided for in the DIP Budget, be paid exclusively from (i) the Combined Reserve or WARN Reserve as applicable, and (ii) Distributable Proceeds to the extent available from the Waterfall Recovery." Plan, Article IV.C. The WARN Reserve was \$0.00 prior to the Effective Date; therefore, no WARN Reserve was turned over to the Plan Administrator.

¹⁰ The "'Shared Proceeds Pool' means all funds allocated to the Debtors or the applicable Successor Entity, as applicable, in accordance with the Sharing Mechanism." Plan, Article I.A(143).

end of the Reporting Period, the Plan Administrator has made payments totaling \$188 million on account of the Allowed DIP Claims (Class 3) and the Allowed FILO Claims (Class 4) including interest and fees of \$34 million. Accordingly, the amount paid on account of the Allowed DIP Claims and the Allowed FILO Claims including interest and fees is \$415 million, and the Initial Sharing Threshold has not been met, meaning there are currently \$0.00 Distributable Proceeds in the Shared Proceeds Pool.¹¹

Dated: August 21, 2026

/s/ Bradford J. Sandler

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Bradford J. Sandler, Esq.

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Counsel to the Plan Administrator

¹¹“Distributable Proceeds” means “subject only to funding the Professional Fee Escrow Account on the Effective Date, all (i) Cash, (ii) Cash proceeds generated from the use, sale, lease, liquidation or other disposition of Estate property, and (iii) Cash proceeds generated by the use, sale, lease, liquidation or other disposition of any property belonging to the Wind Down Debtors, in each case excluding the Combined Reserve.” See Plan, Article I.A, at § 58.

EXHIBIT A

COLLECTIONS		
Source	Collections Current Quarters (1/1/2026-6/30/2026)	Collections From Effective Date (9/29/2023-6/30/2026)
Asset Sales	\$0	\$10,460,000
Causes of Action (§547) ¹²	\$8,100,000	\$36,076,000
Causes of Action (§542) ¹³	\$0	\$0
Causes of Action (Other) ¹⁴	\$22,878,000	\$55,930,000
Credit Cards: Receivables & Reserve Returns	\$0	\$19,543,000
Insurance: Bond & Collateral Returns	\$567,000	\$42,515,000
Interest	\$95,000	\$2,341,000
Other ¹⁵	\$26,000	\$15,878,000
Tax: Refunds & Overpayments	\$1,174,000	\$20,921,000
Vendors: Rebates and Refunds	\$1,000	\$16,516,000
Total	\$32,841,000	\$220,180,000

¹² As of August 7, 2026, the Plan Administrator has filed 260 adversary proceedings in this Court pursuant Bankruptcy Code sections 547 that seek to recover preferential payments (the “Preference Actions”), 26 of which remain active. Collections amount is net of attorneys’ fees and costs. The Plan Administrator has settled numerous preference claims against recipients of preferential payments without formal litigation.

¹³ As of August 7, 2026, the Plan Administrator has filed 18 adversary proceedings in this Court pursuant Bankruptcy Code sections 542 that seek to recover tax refunds, overpayments, collateral and/or other cash assets the Plan Administrator contends the defendant is holding (the “Turnover Actions”) (and some of which also object to the defendant’s claims), 7 of which remain active.

¹⁴ The Plan Administrator has also initiated (and/or continued to prosecute) the following additional Causes of Action outside of this Court which are still pending: (1) *20230930-DK-Butterfly-1, Inc. v. Ryan Cohen et al.* (S.D.N.Y. August 1, 2024); (2) *Bed Bath & Beyond Inc., et al v. Anthem, Inc., f/k/a WellPoint, Inc. d/b/a Anthem Blue Cross Life and Health Insurance Company, Blue Cross of California, et al.*, Case No. 2:22-cv-01256-SGC (N.D. Ala. Sep. 27, 2022); (3) *Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, Case No. 23-02 (Federal Maritime Commission, April 27, 2023) (on appeal); (4) *20230930-DK-Butterfly-1, Inc. v. BAL Container Line Co., Limited*, Case No. 25-02 (Federal Maritime Commission, Jan.7, 2025); (5) *20230930-DK-BUTTERFLY-1, Inc. v. Evergreen Marine Corp. (Taiwan) Ltd., et al*, Case No. 24-12 (Federal Maritime Commission, Feb. 21, 2021); (6) *Bed Bath & Beyond Inc. v. Yang Ming Marine Transport Corp.*, Case No. 23-10 (Federal Maritime Commission, September 7, 2023), (6) *In re Insulin Pricing Litigation (RAD SUB-TRUST A et al v. Eli Lilly & Co., et al*, Case No. 2:246-cv-00456 (D.N.J. Jan. 14, 2026), and (7) *Bed Bath & Beyond Inc v KEURIG GREEN MOUNTAIN, INC.*, Case No. 1:26-cv-04074 (S.D. N.Y., May 15, 2026). The Plan Administrator also initiated (and/or continued to prosecute) the following additional Causes of Action outside of this Court which are now settled: (1) *20230930-DK-Butterfly-1, Inc. v. MSC Mediterranean Shipping Company SA*, Case No. 23-12 (Federal Maritime Commission, Nov. 28, 2023); (2) *20230930-DK-Butterfly-1, Inc. v. Edelman et al.*, Case No. 652164/2024 (Sup.Ct. N.Y. York, April 26, 2024). The Plan Administrator has settled claims against numerous shippers without formal litigation, including Ocean Network Express (ONE), Hapag Lloyd, and COSCO Shipping Lines.

¹⁵ Includes, among other things, recoveries of Canadian refunds, utility deposits, restitution payments and unclaimed property.

EXHIBIT B

PAYMENTS FROM UNRESTRICTED CASH & COLLECTIONS			
Claimants	Plan Class	Payments Current Quarters (1/1/2026-6/30/2026)	Payments From Effective Date (9/29/2023-6/30/2026)
Administrative & Priority Class Claims			
Administrative Claims	Unclassified	\$0	\$30,000
Other Priority Claims	1	\$0	\$0
Other Secured Claims	2	\$0	\$0
DIP Claims & FILO Claims	3 & 4	\$26,614,000	\$188,147,000
Subtotal		\$26,614,000	\$188,177,000
Plan Administrator Expenses			
Bank Fees	N/A	\$2,000	\$1,773,000
Bankruptcy Counsel	N/A	\$802,000	\$5,961,000
Claims Agent Fees	N/A	\$200,000	\$1,578,000
Contingent, Legal and Consulting Fees	N/A	\$42,000	\$3,995,000
Lease Deposit Return	N/A	\$0	\$947,000
Other	N/A	\$31,000	\$781,000
Outstanding Checks & Payments Turned Over to Plan Administrator	N/A	\$0	\$3,433,000
Plan Administrator & Staff Expenses	N/A	\$1,322,000	\$8,410,000
Tax Compliance Fees	N/A	\$119,000	\$2,224,000
Tax Counsel	N/A	\$1,259,000	\$2,648,000
Tax Payments Canada & Other	N/A	\$0	\$1,244,000
US Trustee Fees	N/A	\$80,000	\$2,159,000
Workers Compensation Funding	N/A	\$0	\$4,350,000
Subtotal		\$3,857,000	\$39,503,000
Total		\$30,471,000	\$227,680,000

EXHIBIT B

EXHIBIT B

**BEFORE THE
FEDERAL MARITIME COMMISSION**

20230930-DK-BUTTERFLY-1, INC. f/k/a BED BATH &
BEYOND INC., *Complainant*,

v.

DOCKET NO. 24-12

EVERGREEN LINE JOINT SERVICE AGREEMENT
(FMC#011982) consisting of EVERGREEN MARINE
CORP. (TAIWAN) LTD., EVERGREEN MARINE (UK)
LIMITED, ITALIA MARITTIMA SpA, EVERGREEN
MARINE (HONG KONG) LTD., AND EVERGREEN
MARINE (SINGAPORE) PTE. LTD., *Respondents*.

**COMPLAINANT’S RESPONSES AND OBJECTIONS TO RESPONDENTS’ REQUEST
FOR ADMISSIONS**

Pursuant to Rule 147, 46 C.F.R. 502.147, of the Federal Maritime Commission Rules of Practice, and Procedure 46 C.F.R. Section 502.1 *et seq.*, and applicable Federal Rules of Civil Procedure, Complainant 20230930-DK-Butterfly-1, Inc. f/k/a Bed Bath & Beyond Inc. (“BBBY” or “Complainant”) hereby responds and objects to the Request for Admissions (the “Requests”) submitted by Respondents, Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Limited, Italia Marittima S.p.A., Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd. (collectively, “Evergreen” or “Respondents”), by and through their attorneys, Betancourt, Greco & Evans LLC on September 30, 2025.

COMPLAINANT'S GENERAL OBJECTIONS

1. Complainant hereby incorporates the following General Objections and limitations into each of its responses to the Requests below. Each response to the Requests is made without waiving Complainant's General Objections.

2. Complainant objects to the Requests, including each of the Definitions and Instructions, including sub parts, and each of the 1,765 Requests for Admission, including sub parts, to the extent they seek to impose requirements that are inconsistent with, or beyond those contemplated by, the Shipping Act of 1984, as amended (the "Shipping Act"), the Federal Rules of Civil Procedure, the Commission's Rules, any other applicable provisions of the Code of Federal Regulations, and any Order entered in this action.

3. Complainant objects to the voluminous 1,765 Requests as unduly burdensome and outside the scope of what is necessary or appropriate in this Proceeding, but nonetheless, in an effort to avoid discovery disputes, provides the Answers below.

4. Complainant objects to the Requests, including all Definitions and Instructions contained in the Requests, to the extent they purport to require the production of documents or information.

5. Complainant objects to the Requests, including all Definitions and Instructions contained in the Requests, to the extent they are vague, ambiguous, overly broad, compound, and/or unduly burdensome. Specific objections that a particular Request is vague, ambiguous, overly broad, compound, and/or unduly burdensome are provided for emphasis and clarity only, and the absence of such a specific objection should not be interpreted to mean that Complainant does not object to a Request on the basis that it is vague, ambiguous, overly broad, compound, and/or unduly burdensome.

6. Complainant objects to the Requests, including all Definitions and Instructions contained in the Requests, to the extent they purport to require admissions by any individual or entity other than Complainant.

7. Complainant objects to the Requests, including all Definitions and Instructions contained in the Requests, to the extent they purport to require admissions that are subject to any privilege, immunity, or obligation of confidentiality, including, without limitation, the attorney-client privilege, the attorney work product doctrine, the common interest privilege, and privileges applicable to settlement communications. Specific objections on the grounds of privilege are provided for emphasis and clarity only, and the absence of a specific objection should not be interpreted to mean that Complainant does not object to a Request based on an applicable privilege.

8. Complainant objects to the Requests, including all Definitions and Instructions contained in the Requests, to the extent they are unreasonably cumulative or duplicative.

9. Complainant objects to the Requests, including all Definitions and Instructions contained in the Requests, to the extent they are compound requests that do not invite a simple admission or denial.

10. Complainant's General Objections apply to Complainant's responses to each and every specific Request, even where not explicitly stated in the specific response to each Request, and Complainant's General Objections are incorporated by reference in each of the responses set forth below, which responses are made subject to, and without waiver of, these General Objections.

11. The full text of 46 C.F.R. 502.147 and Rule 36 of the Federal Rules of Civil Procedure are deemed incorporated herein by reference and apply in all respects to these Requests.

COMPLAINANT'S OBJECTIONS TO INSTRUCTIONS AND DEFINITIONS

1. Complainant objects to the instruction that each term is intended to have the “broadest meaning permitted.” This instruction is vague and overbroad, requiring Complainant to speculate as to the intended scope of each Request.

2. Complainant objects to the instructions to the extent they call for the basis for failing to admit or deny a Request or asks for facts relied upon for such denial or partial denial and to the extent that they ask for any documents supporting such denials. The FMC’s Rules at 46 U.S.C. Section 502.147(a)(4) require only that an answer to a request for admission admit, deny or state in detail why the answering party cannot truthfully admit or deny. Explanation is needed only when an answer partly answers or qualifies an answer.

3. Complainant objects to the definition of “Agreement” as vague, ambiguous, and overly broad. The terms “arrangement” and “understanding,” particularly when qualified by “informal,” lack the precision required for discovery and could refer to non-binding, preliminary, or misunderstood communications rather than a meeting of the minds sufficient to form a basis for legal rights or obligations.

4. Complainant objects to the final sentence of the definition of “Document” or “Documents” as overly broad and unduly burdensome to the extent it purports to include every non-identical copy, including those with only minor, non-substantive, or clerical differences, as a separate document. Complainant will interpret “separate document” to mean drafts or copies containing substantive, non-clerical differences or that were circulated to different recipients.

5. Complainant objects to the definition of “You/Your” as overly broad and unduly burdensome to the extent it includes “attorneys,” as it purports to require admissions concerning information protected by privilege.

6. Complainant objects to this definition of “Parties” as overly broad and unduly burdensome because it includes “corporate parents, subsidiaries or affiliates.”

7. Complainant objects to these definitions of “communication”, “documents”, “relating to”, “concerning” to the extent they are not consistent with the requirements of the Commission's Rules (including 46 C.F.R.502.147) or the Federal Rules of Civil Procedure.

8. Complainant objects to the instruction that “‘And’ and ‘or’ encompasses both ‘and’ and ‘or’” on the grounds that it is ambiguous and renders any Request using those terms compound and not subject to a simple admission or denial.

REQUESTS FOR ADMISSION

REQUEST FOR ADMISSION NO. 1: Admit Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond, Inc. (“BBBY”) is a company existing under the law of New York.

RESPONSE: Subject to and without waiving Complainant’s Objections, this Request is **ADMITTED.**

REQUEST FOR ADMISSION NO. 2: Admit Complainant has a principal place of business in New Jersey.

RESPONSE: Subject to and without waiving Complainant’s Objections, this Request is **ADMITTED.**

REQUEST FOR ADMISSION NO. 3: Admit that EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC#011982) consisting of EVERGREEN MARINE CORP. (TAIWAN) LTD., EVERGREEN MARINE (UK) LIMITED, ITALIA MARITTIMA SpA, EVERGREEN MARINE (HONG KONG) LTD., AND EVERGREEN MARINE (SINGAPORE) PTE. LTD is a Federal

RESPONSE: Subject to and without waiving Complainant's Objections, this Request is **DENIED.**

REQUEST FOR ADMISSION NO. 829: Admit that BBY did not pay Evergreen any amount during the May 1, 2020 through April 30, 2022 period that was not set forth in Evergreen's published tariff or a service contract, as amended.

OBJECTION: Complainant objects to the Request to the extent that it is not relevant to the claims and defenses in this action. Complainant further objects to this Request because it is vague and ambiguous as to the meaning of "published tariff" and "service contract, as amended."

RESPONSE: Subject to and without waiving Complainant's Objections, this Request is **DENIED.**

REQUEST FOR ADMISSION NO. 830: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0001915 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container,

but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 831: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0001981 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.**REQUEST FOR ADMISSION NO. 832:** Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0001984 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by

Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 833: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0001984A against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.**REQUEST FOR ADMISSION NO. 834:** Admit that BBY is seeking

reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002012 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.**REQUEST FOR ADMISSION NO. 835:** Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002013 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that

Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.**REQUEST FOR ADMISSION NO. 836:** Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002031 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 837: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002034 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 838: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002035 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 839: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002109 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 840: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002110 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 841: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002111 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 842: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002112 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 843: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002113 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 844: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002114 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 845: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002146 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 846: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002147 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 847: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002166 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 848: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002167 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 849: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002186 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 850: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002206 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 851: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002207 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 852: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002212 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 853: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002241 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 854: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002242 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 855: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002285 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 856: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002302 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 857: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002311 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 858: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002313 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 859: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002314 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 860: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002315 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 861: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002316 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 862: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002317 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 863: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002318 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 864: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002319 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 865: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002321 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 866: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002322 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 867: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002323 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 868: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002324 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 869: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002325 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 870: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002326 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 871: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002330 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 872: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002341 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 873: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002342 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 874: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002343 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 875: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002344 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 876: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002345 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 877: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002374 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 878: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002375 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 879: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002376 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 880: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002377 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 881: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002378 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 882: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002379 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 883: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002380 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 884: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002401 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 885: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002402 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 886: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002403 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 887: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002406 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 888: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002407 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 889: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002408 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 890: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002451 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 891: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002452 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 892: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002453 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 893: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002454 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 894: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002455 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 895: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002456 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 896: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002457 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 897: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002458 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 898: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002459 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 899: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002460 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 900: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002461 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 901: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002463 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 902: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002464 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 903: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002523 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 904: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002524 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 905: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002528 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 906: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002529 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 907: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002530 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 908: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002531 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 909: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002532 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 910: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002582 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 911: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002586 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 912: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002587 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 913: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002588 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 914: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002589 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 915: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002590 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 916: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002621 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 917: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002622 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 918: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0002623 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 919: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0003138 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 920: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0003139 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 921: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0003140 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 922: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0003141 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 923: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0003201 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 924: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSGGZS0003202 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 925: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSNGBS0028880 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 926: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSNGBS0028885 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 927: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSNGBS0028886 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 928: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSNGBS0028888 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 929: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSNGBS0028889 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 930: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSNGBS0028942 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 931: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSNGBS0028943 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 932: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSNGBS0028944 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 933: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSNGBS0028946 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 934: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSNGBS0028950 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 935: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSNGBS0028951 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 936: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSNGBS0029024 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 937: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSNGBS0029025 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 938: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSNGBS0029026 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 939: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSNGBS0029027 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 940: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0006979 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 941: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0006980 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 942: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0006981 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 943: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0006982 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 944: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0007028 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 945: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0007195 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 946: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0007199 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 947: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0007309 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 948: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0007326 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 949: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0007327 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 950: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0007331 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 951: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0007345 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 952: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0007348 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 953: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0007349 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 954: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0007411 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 955: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0007457 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 956: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0007511 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 957: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0007612 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 958: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0008370 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 959: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0009100 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 960: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0009197 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 961: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0009205 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 962: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0009206 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 963: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0009340 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 964: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0009341 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 965: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0009342 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 966: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0009343 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 967: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0009371 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 968: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0009410 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 969: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0009418 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 970: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0009490 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 971: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0009497 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 972: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0009503 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 973: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0009510 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 974: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0009519 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 975: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0009521 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 976: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0009522 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 977: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0009555 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 978: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0009556 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 979: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0009597 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 980: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0009605 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 981: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0009610 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 982: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0009635 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 983: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0009654 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 984: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0009655 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 985: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0009767 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 986: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSQINS0009843 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 987: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0051805 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 988: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0057295 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 989: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0057298 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 990: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0057306 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 991: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0057311 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 992: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0057318 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 993: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0057334 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 994: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0057341 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 995: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0057353 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 996: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0057357 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 997: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0057362 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 998: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0057364 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 999: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0057367 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1000: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0057370 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1001: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0057372 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1002: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0057376 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1003: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0057378 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1004: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0057385 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1005: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0057648 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1006: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0057653 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1007: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0057654 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1008: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0057656 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1009: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0057657 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1010: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0057658 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1011: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0057661 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1012: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0057692 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1013: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0057693 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1014: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0057694 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1015: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0057695 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1016: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0057696 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1017: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0058036 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1018: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0058072 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1019: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. DWCHSSHAS0058073 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1020: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. EXDO61N0677189 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1021: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. EXDO61N0678314 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1022: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. EXDO61N0678314B against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1023: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLNNSHA20120022 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1024: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSHA20081563 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1025: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSHA20090135 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1026: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSHA20090775 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1027: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSHA20090776 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1028: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSHA20091270A against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1029: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSHA20091270B against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1030: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSHA20091271 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1031: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSHA20091418 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1032: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSHA20091453 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1033: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSHA20110852 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1034: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSHA20111467 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1035: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSHA20111837 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1036: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSHA20120021 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1037: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSHA20120199 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1038: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSHA20120201 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1039: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSHA21030147 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1040: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSHA21030148 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1041: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSHA21030517 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1042: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSHA21030631 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1043: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSHA21030632 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1044: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSHA21030633 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1045: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSHA21030634 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1046: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSHA21030635 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1047: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSHA21030636 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1048: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSHA21030794 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1049: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSHA21030795 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1050: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSHA21030991 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1051: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSHA21031481 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1052: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSHA21031484 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1053: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSHA21031485 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1054: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSHA21031657 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1055: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSNRG21030066 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1056: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSNZX20092323 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1057: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSZSX20112764 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1058: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSZ21012113 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1059: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSZ21012426 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1060: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSZX21020438 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1061: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSZX21020439 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1062: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSZX21020440 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1063: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSZX21020813 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1064: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSZ21030967 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1065: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSZ21031319 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1066: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSZX21031463 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1067: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSZ21031464 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1068: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSZ21042161 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1069: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLSZSX21042162 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1070: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLNTAO21010456 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1071: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLNTAO21010549 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1072: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLNTAO21030406 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1073: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLNTAO21030411 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1074: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLNTAO21030433 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1075: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLNTAO21030463 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1076: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLNTAO21030640 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1077: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLNTAO21030647 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1078: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLNTAO21030671 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1079: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLNTAO21030676 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1080: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLNTAO21030698 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1081: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLNTAO21030739 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1082: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLNTAO21030765 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1083: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLNTAO21030782 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1084: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLNTAO21030799 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1085: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLNTAO21040039 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1086: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLNTAO21040095 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1087: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLNTAO21040161 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1088: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLNTAO21040179 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1089: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLNTAO21040329 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1090: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLNTAO21040435 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1091: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. HYSLNTPE21020352 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1092: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT201702J08959 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1093: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT201702J08960 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1094: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT201702J08962 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1095: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT201702J08964 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1096: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT201702J08965 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1097: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT201702J08966 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1098: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT201702J08967 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1099: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT201702J09046 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1100: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT201702J09107 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1101: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT201702J09108 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1102: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT201702J09246 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1103: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT201702J09266 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1104: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT201702K00606 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1105: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT201702K00607 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1106: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT201702K00609 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1107: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT201702K00611 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1108: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT201702K00613 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1109: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT201702K00614 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1110: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT201702K00914 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1111: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT201702K00915 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1112: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT201702K02393 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1113: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT201702K02394 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1114: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT201702K02395 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1115: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT201702K02396 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1116: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT201702K02397 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1117: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT201702K02419 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1118: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT201702K02421 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1119: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT201702K02544 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1120: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT201702K02547 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1121: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT201702K02548 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1122: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT201702K02549 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1123: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT201702K02718 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1124: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT202702J07734 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1125: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT202702J07735 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1126: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT202702J07854 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1127: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT202702J07899 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1128: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT202702J07900 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1129: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT202702J07901 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1130: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT202702J07905 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1131: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT202702J07950 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1132: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT202702K00519 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1133: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT202702K00521 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1134: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT202702K00522 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1135: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT202702K00523 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1136: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT202702K00524 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1137: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT202702K03236 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1138: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT202702K03319 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1139: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT202702K03322 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1140: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT205702K01705 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1141: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT205702K01981 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1142: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT205702K02258 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1143: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. OERT205702K02316 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1144: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SHRFWLC20125109 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1145: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SHRFWLC20125523 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1146: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SMBSNGB5752864 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1147: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SMMBSNGB5756167 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1148: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SMBSNGB5760460 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1149: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SMBSNGB5760476 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1150: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SMMBSNGB5760504 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1151: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SMBSNGB5760525 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1152: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SMBSNGB5760640 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1153: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SMMBSNGB5762701 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1154: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SMBSNGB5766959 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1155: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SMBSNGB5766965 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1156: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SMMBSNGB5768748 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1157: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SMBSNGB5771932 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1158: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SMBSNGB5771958 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1159: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SMMBSNGB5779312 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1160: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SMBSNGB5779321 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1161: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SMBSNGB5779646 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1162: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SMMBSNGB5779742 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1163: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SMBSNGB5779755 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1164: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SMBSNGB5779769 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1165: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SMMBSNGB5779779 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1166: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SMBSNGB5779804 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1167: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCONBOE21081068 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1168: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCONBOE21081071 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1169: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCONBOE21081072 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1170: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCONBOE21081073 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1171: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCONBOE21081074 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1172: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCONBOE21081075 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1173: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCONBOE21081079 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1174: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCONBOE21081080 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1175: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCONBOE21081081 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1176: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCONBOE21081082 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1177: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCONBOE22010087 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1178: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCONBOE22010088 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1179: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCONBOE22010089 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1180: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCONBOE22010312 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1181: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCOQDOE21030135 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1182: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCOQDOE21120124 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1183: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCOSHE21013839 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1184: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCOSHE21013841 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1185: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCOSHE21013844 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1186: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCOSHE21083776 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1187: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCOSHE21083777 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1188: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCOSHE21083778 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1189: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCOSHE21083779 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1190: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCOSHE21083780 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1191: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCOSZOE21020597 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1192: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCOSZOE21020765 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1193: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCOSZOE21040919 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1194: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCOSZOE21041232 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1195: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCOSZOE21041719 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1196: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCOSZOE21081490 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1197: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCOSZOE21091110 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1198: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCOSZOE21091111 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1199: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCOSZOE21091112 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1200: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCOSZOE21091117 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1201: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCOSZOE21091118 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1202: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCOSZOE21091119 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1203: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCOSZOE21091120 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1204: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCOSZOE21091154 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1205: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SXCOSZOE21091156 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1206: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SZOE21081356 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1207: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SZOE21091918 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1208: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SZOE21092187 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1209: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SZOE21092188 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1210: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SZOE21092189 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1211: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. SZOE21092190 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1212: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. WWLLWLC11119897 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1213: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. WWLLWLC11214252 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against

another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1214: Admit that BBY is seeking reparations under the Shipping Act for increased freight costs associated with shipping cargo under Bill of Lading No. WWLLWLC11214617 against a VOCC, including but not limited to MSC, OOCL and/or Yang Ming, other than Evergreen, before the Federal Maritime Commission.

RESPONSE: Subject to and without waiving Complainant's Objections, Complainant admits only that it is seeking reparations for additional incremental costs associated of replacing Evergreen's shortfalls during the relevant shipping years based cargo actually shipped by Complainant with NVOCCs on the spot market on the same port pairs and in the same relevant time period as Respondents' failures to satisfy their service commitments, but otherwise **DENIES** this request, specifically but not exclusively including any allegation within this Request that Complainant is seeking improper double-damages based on such replacement shipments, and to the extent that any NVOCC shipment results in a judgment in Complainant's favor as against another Ocean Carrier, Complainant does not seek reparations from Evergreen for that Container, but has provided Evergreen with substantial evidence to support alternative containers shipped by such NVOCCs.

REQUEST FOR ADMISSION NO. 1215: Admit Evergreen provided reasonable notice to BBY that container number EISU1639803 was available for retrieval.

REQUEST FOR ADMISSION NO. 1764: Admit BBY has not produced any evidence that Evergreen rejected a booking request for cargo shipped under Bill of Lading No. WWLLWLC11214252.

RESPONSE: Subject to and without waiving Complainant's Objections, this Request is **DENIED.**
REQUEST FOR ADMISSION NO. 1765: Admit BBY has not produced any evidence that Evergreen rejected a booking request for cargo shipped under Bill of Lading No. WWLLWLC11214617.

RESPONSE: Subject to and without waiving Complainant's Objections, this Request is **DENIED.**

Except to the extent that Complainant has explicitly admitted any portion of the foregoing Requests, Complainant denies each and every one of the foregoing Requests.

Dated: October 30, 2025

HUTH REYNOLDS LLP

Mohini Priya Banerjee Rarrick

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*Counsel for Complainant 20230930-DK-
Butterfly-1, Inc. f/k/a Bed Bath & Beyond Inc.*

Certificate of Service

I hereby certify that I have this day caused to be served the foregoing document upon Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Limited, Italia Marittima SpA, Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd. by emailing a copy to their counsel of record listed below:

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Counsel for Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Limited, Italia Marittima SpA, Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd.

Dated: October 30, 2025

Mohini Priya Banerjee Rarrick
Mohini P.B. Rarrick
*For Complainant 20230930-DK-Butterfly-1, Inc.
f/k/a Bed Bath & Beyond Inc.*

EXHIBIT C

EXHIBIT C

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

BED BATH & BEYOND INC., *Complainant*

v.

YANG MING MARINE TRANSPORT CORP., *Respondent*.

DOCKET NO. 23-10

Served: July 16, 2026

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER ON MOTION TO REOPEN RECORD AND TO SUBMIT SUPPLEMENTAL INFORMATION

Complainant Bed Bath & Beyond Inc. (“BBBY”) filed a complaint in September 2023 alleging that Respondent Yang Ming Marine Transport Corp. (“Yang Ming”) violated 46 U.S.C. §§ 41102(c), 41104(a)(2), 41104(a)(10), 41102(d), and 46 C.F.R. § 545.5. Because of the complexity of this case and the volume of documents exchanged between the parties, multiple discovery and briefing extensions were granted throughout this proceeding. Ultimately, discovery closed on January 24, 2025, and briefing was completed on April 7, 2025. The parties were then ordered to refile a joint motion for confidential treatment and to re-submit both public and confidential versions of their briefs, proposed findings of fact and responses to proposed findings of fact, and appendices, with confidential information properly marked, which were timely resubmitted on May 28, 2025.

While the government was shut down during a lapse in appropriations, Yang Ming submitted a motion to reopen the record and supplement briefing (“Motion to Reopen”); the motion was treated as filed on November 13, 2025, when the government reopened. Yang Ming asserted that “the lion’s share of the bills of lading for which claim is made in the instant proceeding are identical” to bills of lading pointed to for reparations in another of BBBY’s cases filed against Evergreen Line Joint Service Agreement, Docket No. 24-12. Motion to Reopen at 4. Yang Ming further argued that “a complainant cannot collect the same damages from multiple respondents.” Motion to Reopen at 6. An initial decision has not yet been issued in Docket No. 24-12. BBBY opposes Yang Ming’s motion to reopen the record and supplement briefing, arguing that the motion “does not present any new evidence or law that was not available to Yang Ming during the extensive discovery and briefing phase of this proceeding.” Opposition to Motion to Reopen at 1. On December 12, 2025, an order issued holding Respondent’s motion in abeyance.

Subsequently, in April 2026, an initial decision was issued in another BBBY case, 20230930-DK-BUTTERFLY-I, Inc. v. Orient Overseas Container Line Ltd., Docket No. 23-02, 2026 WL 1285696 (ALJ Apr. 24, 2026) (“BBBY v. OOCL”). In this initial decision, BBBY was

awarded total reparations of \$45,600,599.25, including an award of \$19,555,270.50 for its shortfall volume in the 2021-22 shipping year. *Id.* at *2, *169-70, *176. This 2021-22 shipping year shortfall reparations award was based in part on BBY expert John McCown's report, which identified "actual shipments undertaken by BBY to cover shortfalls" during the BBY/OOCL 2021 service contract, on trade lanes covered by that service contract, using non-vessel-operating common carriers or freight forwarders (combined "NVO/FFs"). *Id.* at *12. Specifically, the 23-02 McCown Appendix B-1 contained "detailed shipment data for each shipment, including: date of departure, date of discharge, bill of lading number, carrier, port of loading, port of discharge, the container size, the carrier total fee, and the total per container," for the 2021-22 shipping year, with the replacement shipments using NVO/FFs listed in Appendix B-1 adding up to 1,363.875 FEU. *Id.* at *83-84. The 23-02 McCown report also included at Appendix B-2 "the precise number of container shipments within the data set presented, for each specific port pair," while Appendix B-3 provided "a calculation of the but-for freight expenses over the same routes and [using] the same container size rate, for the 2021 service contract," and Appendix B-4 summarized the additional incremental expenses as a result of the shortfall. *Id.* at *83-4. The B-1 through B-4 McCown report appendices in 23-02, found in the 23-02 complainant's appendix at APP 3810-44, shall hereafter be referred to as the "23-02 McCown Appendices."

In the present proceeding, BBY has also alleged shortfall damages for the 2021-22 shipping year, based on a report also prepared by BBY expert McCown, which contains similarly formatted appendices supporting shortfall damages in Appendices A-1 through A-4 ("23-10 McCown Appendices"). APP 1240; APP 1284-1309. Specifically, in this proceeding's Appendix A-1, there is a listing of "actual shipments undertaken by BBY during the 2021 service contract year on lanes covered by the [BBY/Yang Ming] 2021 Service Contract using NVOs or freight forwarders." APP 1284-1304. The shipments listed in this proceeding's Appendix A-1, per the McCown report's summary, equal 851.75 FEU. APP 1284. BBY's Appendix A-2 in the current proceeding then shows the number of containers, by container size, shipped by lane; Appendix A-3 purports to show "how much BBY would have paid if it had shipped each of the loads referenced in Appendices A-1 and A-2 via Yang Ming at the freight rates specified in the 2021 Service Contract, instead of via high-priced NVOCCs;" and Appendix A-4 "summarizes the impact of the data set forth in Appendices A-1 through A-2" showing the resulting claimed incremental expenses due to the shortfall. APP 1305-09.

In this proceeding, per the May 28, 2025, Consent Motion for Confidential Treatment ("May Confidentiality Request"), BBY has asserted as confidential certain "Info indicated" from the McCown report, which runs from APP 1284-1326. May Confidentiality Request at 1. Therefore, only non-redacted information contained within the revised public version of Complainant's appendix will be referenced in this order, so as not to include information potentially asserted to be confidential. Then, comparing the public version of the 23-02 McCown Appendices to the public version of the 23-10 McCown Appendices, it is evident that the shipments presented by BBY contain overlapping port pairs. *Compare* 23-02 McCown Appendix B-2 *with* 23-10 McCown Appendix A-2. As just a handful of examples, both in the 23-02 McCown Appendices and in the 23-10 McCown Appendices, the shipments submitted to cover the alleged 2021-22 shipping year shortfalls include port pairs: Nhava Sheva to New York; Ningbo to Los Angeles; Ningbo to Savannah; Shanghai to Los Angeles; and Tuticorin to New York, among other overlaps. There being overlapping port pairs over the same time period does

not necessarily mean that the same shipments have been included as replacement shipments across 23-02 and the present case, but it does present the possibility of such overlap. Also of note, however, there are port pairs in the 23-10 McCown Appendices which do *not* appear in the 23-02 McCown Appendices, including shipments from: Laem Chabang to New York; Qingdao to New York; and Semarang to New York, among other non-overlaps. Presumably, none of these port pair shipments could have already been included in 23-02 reparations, therefore, there are at least some shipments offered in BBBY's shortfall analysis in this proceeding that were not already offered in support of shortfall reparations in BBBY's 23-02 claim. As noted, BBBY has already been compensated for shipments listed in the 23-02 McCown Appendices, so the impact of potential overlapping shipments may be relevant to calculations in the current proceeding once a determination on the merits is made.

The issue of potential double recovery by BBBY was not yet ripe at the time Respondent's motion was filed, because there had not yet been damages awarded to BBBY in any of the relevant cases before the Federal Maritime Commission. Now, reparations have been awarded for the entire 1,363.875 FEU of shipments identified in Appendix B-1 of the 23-02 McCown Appendices. *BBBY v. OOCL*, 2026 WL 1285696, at *85 (holding that "as it has been determined that BBBY is entitled to shortfall damages . . . up to the contract shortfall of 1,827.50 FEU for the 2021 service contract, the excess costs for the entire shipment volumes identified in the McCown report (of . . . 1363.875 FEU in 2021) are appropriately compensable to BBBY."). Thus, whether any of these same shipments have been relied on in support of reparations here may be relevant if reparations are due.

Commission Rule 25 generally gives the presiding officer the authority to regulate proceedings before him or her, including the authority to dispose of any matters that normally and properly arises in the course of a proceeding. *See* 46 C.F.R. § 502.25.

For the foregoing reasons, Complainant is directed to supplement the record by answering the questions set forth below, and Respondent may also respond as set forth below. Complainant's answers should be received no later than August 14, 2026, and Respondent's response, if any, should be received no later than August 28, 2026. The failure to answer these questions or produce the requested information may impact the availability and calculation of reparations should they be due.

To the extent necessary, the parties may file both confidential and public versions of their responses. If a confidential version is required, this also should be accompanied by a motion for confidentiality. The parties are cautioned, however, that they should take care not to over-designate confidential information, particularly concerning total reparations sought and related damages calculations. *See, e.g.*, APP 1309 (asserting as confidential the dollar figures corresponding to the cost of NVO freight on impacted lanes, the but-for cost, and the alleged excess cost to BBBY based on the shortfall claimed).

Requests for Information Directed to Complainant:

1. How many distinct shipment entries (i.e. rows of data) were included in this proceeding's McCown Appendix A-1? Also confirm that the shipments in this proceeding's Appendix A-1 sum to 851.75 FEUs.

2. Out of the total distinct shipment entries (i.e. rows of data) included in this proceeding's McCown Appendix A-1, how many shipments had also been included in the 23-02 McCown Appendix B-1? Please specify both in terms of the number of distinct shipment entries (i.e. rows of data), and also specify the FEU sum, with respect to shipments that had been cross-listed in 23-02's McCown Appendix B-1.
3. Create a chart, labeled as Appendix A-1(a), which lists all of the rows and columns of data contained in this proceeding's McCown Appendix A-1, and with one additional column added that will indicate 'Included in 23-02 App. B-1, Yes or No' and filling in 'Yes' or 'No' for each row of data.
4. Create and provide a supplemental chart, labeled as Appendix A-1(b), replicating this proceeding's Appendix A-1, but with all of the entries that had been cross-listed in 23-02's McCown App. B-1 omitted. For example, if there had been 475 rows of shipment data, summing to 851.75 FEUs in this proceeding's original McCown Appendix A-1, and if 300 of those rows of shipment data had also been included in 23-02's McCown Appendix B-1, then there should only be 175 rows of data in the end Appendix A-1(b). Also include a sentence on the top of the supplemental chart, Appendix A-1(b), stating "The shipments in this chart sum to xxx FEUs," filling in the accurate FEU number where xxx's are indicated.
5. Create and provide a supplemental chart, labeled as Appendix A-2(b), replicating this proceeding's Appendix A-2, but summarizing only the shipment data contained in the new Appendix A-1(b).
6. Create and provide a supplemental chart, labeled as Appendix A-3(b), replicating this proceeding's Appendix A-3, but based only on the shipment data contained in the new Appendix A-1(b) and Appendix A-2(b).
7. Create and provide a supplemental chart, labeled as Appendix A-4(b), replicating this proceeding's Appendix A-4, but summarizing only the data set forth in supplemental charts Appendix A-1(b) through A-3(b).
8. Complainant should include unique APP bates numbers, which have not previously been used, on each page of the supplemental charts requested above, so that these pages may be clearly referenced.
9. If desired, discuss why shipments being included in the 23-02 McCown Appendices, for which reparations have already been granted, should or should not preclude these shipments being utilized in support of reparations for 23-10 shortfall damages. Such discussion (and any response thereto by Yang Ming) shall be limited to ten (10) pages.

Yang Ming may respond to BBY's submissions, if desired, no later than August 28, 2026. Yang Ming should confine its response to addressing the material submitted by BBY pursuant to the above and should not reargue the motion.

A larger reopening of the record – beyond the submission of the information required above – is not warranted here, because Respondent has already had ample opportunity to investigate the McCown expert report offered in this proceeding, including through deposing Mr. McCown, and making resulting arguments in briefing. Likewise, BBY has already had a fulsome opportunity to present its reparations data, during the discovery and briefing phases of this proceeding.

Accordingly, it is hereby **ORDERED** that Respondent's November 13, 2025, motion to reopen the record and supplement briefing is **GRANTED IN PART** and **DENIED IN PART**. In addition, it is hereby **ORDERED** that Complainant shall respond to the above request for information by August 14, 2026, and Respondent's response, if any, should be received no later than August 28, 2026.



Linda S. Harris Crovella
Administrative Law Judge

EXHIBIT D

EXHIBIT D

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 23-10

BED BATH & BEYOND INC. v. YANG MING MARINE TRANSPORT CORP.

**COMPLAINANT’S RESPONSE TO THE ORDER ON MOTION TO REOPEN RECORD
AND TO SUBMIT SUPPLEMENTAL INFORMATION**

Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc. (“BBBY” or “Complainant”), by and through its undersigned attorneys, respectfully submits this response to the Presiding Officer’s July 16, 2026 Order on Motion to Reopen Record and to Submit Supplemental Information (the “Order”). Part I below answers each of the Order’s Requests for Information Directed to Complainant, and attaches the supplemental charts required by Requests Nos. 3 through 8, referencing the Expert Report by John McCown submitted in this case, and the Expert Report submitted by John McCown in FMC Docket No. 23-02, *20230930-DK-Butterfly-1, Inc. v. Orient Overseas Container Line Ltd.* (“23-02 McCown Appendices”). Part II below provides Complainant’s discussion pursuant to the Order’s Request No. 9. Consistent with the Order’s guidance that the parties “should take care not to over-designate confidential information, particularly concerning total reparations sought and related damages calculations,” Order at 3, Complainant submits this response and its accompanying appendices publicly, without redaction.

I. RESPONSES TO THE REQUESTS FOR INFORMATION

Request No. 1. This proceeding’s McCown Appendix A-1 contains 501 distinct shipment entries (502 rows of data including the row of column titles). APP 1284-1304. Complainant

confirms that the shipments listed in this proceeding's Appendix A-1 sum to 851.75 FEUs. APP 1284.

Request No. 2. Of the 501 distinct shipment entries included in this proceeding's McCown Appendix A-1, all 501 entries had also been included in the 23-02 McCown Appendix B-1. Stated in terms of FEUs, all 851.75 FEUs reflected in this proceeding's Appendix A-1 were cross-listed in the 23-02 McCown Appendix B-1.

Request No. 3. As directed, Complainant attaches Appendix A-1(a), which replicates all rows and columns of data contained in this proceeding's McCown Appendix A-1 and adds a column indicating 'Included in 23-02 App. B-1, Yes or No,' completed for each of the 501 rows of data. APP-1997 – APP-2021. Consistent with the response to Request No. 2, the added column reflects 'Yes' for every row.

Request No. 4. As directed, Complainant attaches Appendix A-1(b), which replicates this proceeding's Appendix A-1 with all entries that had been cross-listed in the 23-02 McCown Appendix B-1 omitted. APP-2022. Because every entry in this proceeding's Appendix A-1 was cross-listed in the 23-02 McCown Appendix B-1, Appendix A-1(b) contains no shipment entries, and, as instructed by the Order, states at its top: "The shipments in this chart sum to 0 FEUs."

Requests Nos. 5, 6, and 7. As directed, Complainant attaches Appendices A-2(b), A-3(b), and A-4(b). APP-2023 – APP-2025. Because the new Appendix A-1(b) contains no shipment data for the reasons stated above, each of Appendices A-2(b), A-3(b), and A-4(b) is necessarily blank, and each so states on its face.

Request No. 8. Complainant has affixed unique APP Bates numbers, not previously used in this proceeding, to each page of the supplemental charts attached to this response, running APP-1997 through APP-2066.

Request No. 9. Complainant provides the discussion permitted by Request No. 9 in Part II below. In addition, and as part of that discussion, Complainant attaches supplemental Appendices A-1(c) through A-4(c), APP-2026 – APP-2066, which replicate the format of this proceeding’s McCown Appendices A-1 through A-4 using only NVO/FF shipments that were *not* included in the 23-02 McCown Appendix B-1, *drawn exclusively from shipment data already in the record of this proceeding*.

II. DISCUSSION PURSUANT TO REQUEST NO. 9

Request No. 9 invites discussion of “why shipments being included in the 23-02 McCown Appendices, for which reparations have already been granted, should or should not preclude these shipments being utilized in support of reparations for 23-10 shortfall damages.” Order at 4. The inclusion of those shipments in the 23-02 McCown Appendices should not preclude their use here for multiple independent reasons. *First*, the *BBBY v. OOCL* Initial Decision explicitly held that the NVO/FF shipments used to calculate damages were not specific to OOCL and could be properly used in other shortfall cases by BBBY against other carriers. *Second*, no double recovery has actually occurred or is imminent: the Initial Decision in FMC Docket No. 23-02 is not final but instead is presently inoperative pending review by the Commissioners of the Federal Maritime Commission on the exceptions filed by the parties in Docket No. 23-02, and BBBY has not actually received any payment on account of any such shipment at issue. *Third*, even if the Presiding Officer were to disregard every overlapping shipment, the record in this proceeding independently contains more than enough non-overlapping NVO/FF shipments to support substantial shortfall damages, as demonstrated by supplemental Appendices A-1(c) through A-4(c). *Fourth*, BBBY’s aggregate shortfall injury across the relevant proceedings exceeds the total volume of replacement shipments identified in both proceedings combined, so awarding reparations in this proceeding

cannot overcompensate BBY. *Fifth*, if an actual damages award against Respondent did cause Respondent to pay damages attributable to other carriers, the remedy for Respondent would be to pursue those carriers for contribution, not an adjustment of the award at this stage.

A. The NVO Shipments Are a Measuring Stick, Not the Injury Itself, and They Are Not Specific to Any Carrier.

Based upon the explicit reasoning by Chief Administrative Law Judge Wirth in the *BBY v. OOCL* Initial Decision, the usage of any shortfall NVO containers to calculate reparations in that proceeding *has no bearing* on how those shortfall NVO containers are used to calculate reparations in the present proceeding. *20230930-DK-Butterfly-1, Inc. v. Orient Overseas Container Line Ltd.* (“*BBY v. OOCL*”), FMC Docket No. 23-02, 2026 WL 1285696 at *12 (FMC ALJ Apr. 24, 2026) (the “23-02 Initial Decision”). Chief Judge Wirth held that “BBY's charges from NVO/FFs to transport containers are relevant to *quantifying* the actual injury. *This data is not specific to any particular carrier*, just as cargo is not specific to any particular carrier, but rather actual data regarding BBY's costs.” *Id.* (emphasis added). Applying that reasoning, the NVO/FF shipments from the OOCL case *are not specific to OOCL and can be used again*.

The NVO spot-market shipments themselves are not the injury they are simply a convenient tool for quantifying the damages of the actual injury: YM’s failure to carry containers in violation of the Shipping Act. The Shipping Act entitles an injured complainant to reparations for its “actual injury”. 46 U.S.C. § 41305(b). As Judge Wirth further explained:

From a liability perspective, the question is whether a respondent failed to carry containers in violation of the Shipping Act. If so, at the reparations stage, the question is what reparations amount would provide compensation with a reasonable degree of certainty. Thus, when a carrier unlawfully fails to ship containers, it has given up responsibility for and control over the costs associated with shipping that container.

23-02 Initial Decision at *163. Thus, containers are fungible and “shippers and ocean carriers . . . do not agree to transport specific containers or specific goods but rather a total number of

containers”, and accordingly, as noted above, “the violation is based on the number of containers out of the MQC that a respondent failed to transport . . . not on the journey of a particular container.” *Id.* at *162.

Liability is established by YM’s failure to carry its committed volume, while the amount of damages is a matter of “reasonable approximation supported by evidence and by reasonable inferences.” *Id.* at *158. The NVO/FF shipments reflected in Complainant’s Appendices submitted in this proceeding are a reasonable measuring stick for the incremental additional cost BBY incurred in connection with Respondent’s failure to carry the volume it had committed to carry.

As Judge Wirth noted, “*it would be odd if these actual costs incurred by BBY varied from one case to the next.*” *Id.* (emphasis added). If the NVO shipments used as damages in the OOCL proceeding *were* unusable for damages in other cases, then BBY would be in the strange position of simply picking which carrier to punish the most and which to punish the least. BBY could choose to use all of its most expensive replacement containers against a carrier with a minor shortfall, and only cheap replacement containers against a carrier with a major shortfall. This would lead to damages awards that were arbitrary, unpredictable, and poorly correlated to a carrier’s actual performance at delivering MQC. Damages awards made on this basis would not properly incentivize carriers to provide adequate service because the financial consequences would be disconnected from their failure. The actual rule, as explained by Judge Wirth, ensures that damages are always proportionate to the actual MQC shortfall by the carrier and do not wildly swing between carriers based on the preferences of the complainant. This is the more just, predictable, and equitable method of damages calculations that best incentivizes carriers to provide adequate service.

B. The 23-02 Initial Decision Is Not Final, and No Double Recovery Has Actually Occurred or Can Occur Absent Two Future Contingencies.

The premise of any preclusion concern is the risk that BBY might be compensated twice for the same incremental additional costs. That risk remains contingent and remote. The 23-02 Initial Decision is not a final decision of the Commission. The respondents in that proceeding filed exceptions to the 23-02 Initial Decision (as did Complainant), and briefing on those exceptions remains pending before the Commission. *See* FMC Docket No. 23-02, Respondents’ Exceptions to the Initial Decision, 2026 WL 1879511 (June 23, 2026); Complainant’s Exceptions to the Initial Decision, 2026 WL 1879512 (June 23, 2026); Respondents’ Response to Complainant’s Exceptions to the Initial Decision, 2026 WL 2241904 (July 23, 2026); Complainant’s Response to Respondents’ Exceptions to the Initial Decision, 2026 WL 2241907 (July 23, 2026). Under the Commission’s rules, the filing of exceptions renders an initial decision “inoperative until the Commission determines the matter,” 46 C.F.R. § 502.227(a)(5), and an initial decision becomes the decision of the Commission only if review is not sought within thirty days of service. *See* 46 C.F.R. § 502.227(a)(3). The Commission, moreover, reviews an initial decision with “all the powers which it would have in making the initial decision.” 46 C.F.R. § 502.227(a)(6). The 23-02 Initial Decision may therefore be affirmed, modified, reversed, or remanded for further proceedings (and any final award would remain subject to further judicial review). The respondents in Docket No. 23-02 (collectively, “OOCL”) have not paid any portion of the amounts that the 23-02 Initial Decision awarded to BBY, whether on the basis of any shipment listed in the 23-02 McCown Appendices or otherwise. Accordingly, no award of reparations in an Initial Decision in this proceeding would result in any actual double compensation.

As BBY explained in opposing Respondent’s motion, an issue “is not ripe for adjudication if it rests upon contingent future events that may not occur as anticipated, or indeed may not occur at all.” *Endeley v. United States Dep’t of Def.*, 268 F. Supp. 3d 166, 175 (D.D.C.

2017); the November 13, 2025 Complainant’s Opposition to Respondent’s Motion to Reopen the Record and Supplement the Briefing at 7. That remains true today: unless and until (i) the 23-02 Initial Decision becomes administratively final in a form that awards reparations based on any shipments listed in the 23-02 McCown Appendices, and (ii) that award is actually satisfied by the respondents in that proceeding, there is no double recovery to guard against, only the *possibility* of one.

Commission precedent confirms that double-recovery concerns turn on amounts a complainant has *actually received*, and that such concerns are addressed by adjustment of the remedy—not by denying or discounting reparations against a respondent whose violation has been proven. In *TCW, Inc. v. Evergreen Shipping Agency (Am.) Corp.*, FMC Docket No. 1966(I), 2022 WL 18068977 (FMC Dec. 29, 2022) (Order Affirming the Initial Decision), the claimant trucker had already been reimbursed, with a markup, by the beneficial cargo owner for the very per diem charges it sought as reparations. The Commission nevertheless affirmed the award of reparations against the carrier, holding that the carrier could not “avoid responsibility by claiming Claimant was later reimbursed,” and the double-recovery problem was cured on the remedy side, by requiring the claimant to return the amounts that it had actually received from the third party. *Id.* at *7–8; *see also In re Vehicle Carrier Servs.*, 2019 WL 5558120 at *6 (FMC 2019) (a respondent cannot rely on a pass-on or reimbursement theory to avoid liability for reparations). The same logic controls here, where—unlike in *TCW, Inc.*—BBBY has received nothing at all. Respondent’s liability for its own shortfall should be adjudicated on the existing record in this proceeding, and in the event reparations are awarded in this proceeding, any hypothetical future overlap in recoveries can be addressed at that time through an appropriate adjustment or offset mechanism tied to amounts BBBY *actually* receives in Docket No. 23-02.

Accordingly, the Presiding Officer may proceed to a determination on the merits and on reparations using the shipments presented in this proceeding's McCown Appendices A-1 through A-4, with any adjustment for actual double recovery reserved for the time—if it ever comes—when a final, satisfied award in Docket No. 23-02 *actually* compensates BBY on the basis of the same shipments. In the alternative, the Presiding Officer possesses ample authority to determine liability on the current record and hold the calculation of reparations in abeyance pending final resolution of Docket No. 23-02. *See* 46 C.F.R. § 502.25 (presiding officer's authority to regulate the proceeding and dispose of matters that normally and properly arise in its course); Order at 3.

C. In Any Event, the Record Contains More Than Enough Non-Overlapping Replacement Shipments to Support Substantial Shortfall Damages: Appendices A-1(c) Through A-4(c).

Even if the Presiding Officer were to conclude that shipments included in the 23-02 McCown Appendices should not be utilized in support of reparations here, the result would not change, because the record of this proceeding already contains ample *additional NVO/FF shipments, on lanes covered by the 2021 Service Contract, during the 2021 Service Contract year, that were never included in the 23-02 McCown Appendix B-1*. To demonstrate this concretely, and in the format the Order prescribes for the (b)-series charts, Complainant attaches supplemental Appendices A-1(c) through A-4(c). APP-2026 – APP-2066.

Appendix A-1(c) lists actual shipments undertaken by BBY during the 2021 Service Contract year, on lanes covered by the 2021 Service Contract, using NVOs or freight forwarders—*none of which was included in the 23-02 McCown Appendix B-1*—and includes, for transparency, the same 'Included in 23-02 App. B-1, Yes or No' column required by Request No. 3, reflecting 'No' for *every row*. The shipments in Appendix A-1(c) sum to 822.375 FEUs, as against Yang Ming's 2021 shortfall of 823.00 FEUs. APP-2026; APP-2066. Appendix A-1(c) does not exhaust the qualifying shipments in the record: because Complainant's shortfall damages are

capped at Respondent's 823.00 FEU shortfall, Appendix A-1(c) lists only enough non-overlapping NVO/FF shipments to reach that cap, and the container-level shipment data of record — BBY_YM-0000335020 and BBY_YM-0000170589 — reflects additional NVO/FF shipments, on lanes covered by the 2021 Service Contract, during the 2021 Service Contract year, beyond those listed. *See* Declaration of Gregory A. Crapanzano, dated April 14, 2025 (Dkt. 49) ¶¶ 9, 15; Opposition to Motion to Reopen at 6, 8.

Appendix A-2(c) summarizes the number of containers, by container size, shipped by lane, APP-2060 – APP-2061; Appendix A-3(c) calculates how much BBY would have paid had it shipped each of those loads via Yang Ming at the freight rates specified in the 2021 Service Contract, APP-2062 – APP-2065; and Appendix A-4(c) summarizes the resulting incremental expense. APP-2066. As shown in Appendix A-4(c), BBY incurred \$9,210,687.00 in spot/NVO freight costs for those 822.375 FEUs, against a but-for cost of \$2,377,105.00 at the 2021 Service Contract rates, for excess costs of \$6,833,582.00 attributable to Yang Ming's shortfall. APP-2066.

Critically, Appendices A-1(c) through A-4(c) present no new evidence. Like this proceeding's original McCown Appendices A-1 through A-4, they are drawn exclusively from the container-level shipment data produced in discovery in this proceeding—BBY_YM-0000335020 and BBY_YM-0000170589—the same two documents BBY identified in its interrogatory responses and briefing as the sources of its shortfall analysis. *See* Crapanzano Decl. (Dkt. 49) ¶¶ 9, 15; Opposition to Motion to Reopen at 5–6. They simply re-run the identical, Commission-approved rate-differential methodology on the subset of that record data that has no overlap with the 23-02 McCown Appendices. The exercise confirms what Section B demonstrates arithmetically: whether measured by the original Appendix A-1 shipments or exclusively by non-overlapping shipments, BBY's actual injury from Yang Ming's 2021 shortfall is substantial.

D. The Combined Shortfalls of OOCL and YM Exceed the Combined Spot Market Shipments from the McCown Appendices in the OOCL and YM Proceedings, Because the OOCL Decision Awarded Less Than the MQC Shortfall.

The arithmetic confirms that recognizing BBBY's full injury in this proceeding would not risk overcompensating BBBY. The 23-02 Initial Decision found that BBBY was entitled to shortfall damages "up to the contract shortfall of 1,827.50 FEU for the 2021 service contract", and that the 1,363.875 FEUs of NVO/FF shipments for 2021 identified in the 23-02 McCown Appendix B-1 were "appropriately compensable." 23-02 Initial Decision at *85; Order at 3. Critically, that left 463.625 FEUs of OOCL's liability uncompensated to BBBY. So, unless this case were to award 463.625 FEUs *more* than YM's shortfall cap, the total award cannot exceed BBBY's total shortfall volume.

Put another way, in this proceeding, Respondent's shortfall for the 2021 Service Contract year was 823 FEUs. APP-2066. The two respondent carriers' combined 2021–22 service commitment shortfalls (i.e., OOCL's 1,827.50 FEUs + Yang Ming's 823.00 FEUs = 2,650.50 FEUs) thus exceed the combined volume of unique replacement shipments identified across the two proceedings (1,363.875 FEUs in the 23-02 Appendix B-1 + 822.375 FEUs = 2,186.25 FEUs). In other words, even if BBBY were awarded reparations from OOCL *and* Yang Ming on the basis of every unique replacement NVO/FF shipment identified in *both* proceedings, BBBY's combined recovery would still be less than its combined shortfall injury from OOCL and Yang Ming for the 2021–22 shipping year. On this record, there is no scenario in which BBBY would be made more than whole.

E. If An Actual Award of Damages in the Future Causes Respondent to Pay for Another Carrier's Damages, Respondent's Remedy Would Be to Pursue That Carrier.

Moreover, even if the Presiding Officer awarded damages such that Respondent genuinely believed that it was being held responsible for excess freight costs properly attributable to another

carrier, the remedy for such a hypothetical inequitable allocation among multiple wrongdoers is contribution among them—not the reduction of an injured complainant’s recovery. *Hapag-Lloyd AG and Hapag-Lloyd (America) LLC Respondents and Third-party Complainants, v. CSX Transportation, Inc. Third-party Respondent*, FMC Docket No. 22-35, 2023 WL 2967200 (FMC Apr. 13, 2023) (respondent carrier’s third-party complaint against rail carrier that collected disputed charges); *see BUC Int’l Corp. v. Int’l Yacht Council Ltd.*, 517 F.3d 1271, 1277 (11th Cir. 2008) (contribution “reflects the view that when two or more persons share responsibility for a wrong, it is inequitable to require one to pay the entire cost of reparation,” while the one-satisfaction rule “by contrast, operates to prevent double recovery . . . for a single injury”). The Commission’s rules expressly permitted Respondent to assert a crossclaim or third-party complaint against another ocean common carrier at the outset of this proceeding, *see* 46 C.F.R. § 502.62(b)(4), but Respondent elected not to do so. In any event, the one-satisfaction rule reaches only multiple recoveries for the *same* injury, and Respondent’s shortfall under its own service contract with Complainant is a distinct injury from any other carrier’s shortfall. “[T]he violation is based on the number of containers out of the MQC that a respondent failed to transport . . . not on the journey of a particular container.” 23-02 Initial Decision at *162.

CONCLUSION

For the foregoing reasons, Complainant respectfully submits that the shipments included in the 23-02 McCown Appendices should not be precluded from supporting an award of reparations for Complainant’s injuries that are the subject of this proceeding against Yang Ming; that any double-recovery concern is contingent, unripe, and fully addressable through an adjustment or offset tied to final awarded amounts actually received, through contribution and indemnification among carriers, or by holding the reparations calculation in abeyance pending

final resolution of Docket No. 23-02; and that, in any event, Appendices A-1(c) through A-4(c) demonstrate that non-overlapping record evidence independently supports shortfall damages of \$6,833,582.00. APP-2026 – APP-2066.

Dated: August 14, 2026

Respectfully submitted,

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Certificate of Service

I hereby certify that I have this day caused to be served the foregoing document upon Respondent Yang Ming Marine Transport Corp. by emailing a copy to its counsel of record listed below:

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